EX INSPECTOR CLACKSON MUZA 040571Y
versus
THE COMMISSIONER GENERAL OF POLICE
and
MINISTER OF HOME AFFAIRS AND HERITAGE
and
PRESIDENT OF THE REPUBLIC OF ZIMBABWE

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 21 January & 8 May 2026

Court Application

T. S Nyawo, for the applicant
F Chimunoko, for the respondents

MANZUNZU J

INTRODUCTION

(1) This is a court application for a declaratory order and consequential relief couched as follows;

1. "The order for discharge of applicant from the Police Service dated 2017 be and hereby declared void and of no effect.
2. Applicant be and is hereby reinstated to the Police Service without loss of salary and benefits.
3. Respondents shall bear costs of this application should they oppose it."

BACKGROUND

(2) The applicant is a former commissioned officer who held the rank of inspector before he was discharged from the Police Service by the third respondent.

(3) The first respondent is the Commissioner General of Police.

(4) The second respondent is the Minister of Home Affairs and Heritage.

(5) The third respondent is the President of the Republic of Zimbabwe.

(6) All the respondents are cited in their official capacity.

(7) The applicant was attested into the Police Service as a constable on 14 September 1992. He rose through the ranks and was promoted to inspector on 11 April 2013. At the time he was discharged he was stationed at ZRP Nyamapanda.

(8) On 21 July 2016, the applicant was transferred from ZRP Western Commonage to ZRP Nyamapanda by recommendations from Officer Commanding Bulawayo Province.

(9) On 2 August 2016, the applicant went to his new station at Nyamapanda. The applicant failed to resume duty on 05 August 2016. On 11 August 2016 he was given two weeks off duty by a doctor ending 24 August 2016.

(10) On 26 August 2016, the applicant was advised to resume duty performing light duties for a month. The applicant did not report for duty from 26 August 2016 to 29 August 2016. The applicant's whereabouts were unknown.

(11) After the expiry of 21 days, on 26 September 2016 a Board of Inquiry (Desertion) was convened by the Commissioner General of Police in terms of section 50 (1) of the Police Act,

[*Chapter 11:10*] as read with section 13(1)(b) of the Police (Trials and Boards Inquiry) Regulations, 1965 to look into the circumstances surrounding the applicant's absence from duty.

(12) The Board made findings and recommended that the applicant be declared a deserter and discharged as unfit for Police duties in terms of section 49(b) of the Police Act.

(13) The Commissioner General of Police recommended the applicant's discharge and the President of the Republic of Zimbabwe, implored to discharge the applicant from the Zimbabwe Republic Police. The applicant was discharged from the Zimbabwe Republic Police on 8 February 2017.

(14) The court allowed the parties to make submissions on both the preliminary points raised and the merits.

(15) The applicant alleges that he was then arraigned before a trial officer to answer to the charge of contravening paragraph 6(1) of the schedules to the Police Act [*Chapter 11:10*] as read with sections 29 and 34 of the Act. The applicant pleaded not guilty to the charge. The applicant alleges that the matter was not concluded following the retirement of the trial officer.

(16) The applicant was charged before the magistrates' court with an offence of contravening paragraphs 6 (1) of the schedule to the Police Act. He was charged with deserting the police service. He alleges that after a full trial, the trial court found him not guilty of the charge and acquitted him.

(17) The applicant alleges that the order is extant and the only impediment in him returning into the Police Service is the decision by the Board of Inquiry. The applicant thus makes an application for reinstatement with full benefits.

(18) In these proceedings the applicant argues that in terms of section 14 of the Police Act, an officer may be dismissed by the President on the advice of the Minister of Home Affairs in consultation with the Commissioner General of Police. The president dismissed the applicant based on the recommendation by the Board of Inquiry.

(19) The Board of Inquiry found that the applicant had deserted the Police Service, to which the applicant argues that the trial court did not establish that he had in fact deserted the Police Service.

(20) The applicant alleges that in a letter dated 22 August 2022, the Chief Staff Officer (Human Resources) advised the applicant that he will not be reinstated unless he had been cleared or absolved of any wrongdoing by the Board of Inquiry.

(21) The first respondent raises a preliminary point and argues that the application by the applicant is for review which is disguised as an application for a *declaratur*. Therefore, the application should be dismissed for want of compliance with Rule 62(4) of the High Court Rules, 2021.

(22) The 1st respondent also alleges that the third respondent's determination was lawful, the applicant was dismissed from the Police Service because the Board of Inquiry found that he had absented himself from duty without official leave for a period more than 21 days and was accordingly declared a deserter from the Police Service.

(23) The 1st respondent states that the applicant's alleged acquittal was based on the failure by the State/ prosecutor to place before the court copies of the General record book and duty roaster, resulting in the applicant being found not to be a satisfactory witness.

(24) The first respondent states that the applicant's acquittal does not affect the determination by the Board of Inquiry. The first respondent further alleges that the discharge was based on a correct administrative process, hence this application should be dismissed with costs.

THE LAW

1. Whether or not this is an application for a review that is disguised as a *declaratur*.

(25) The Supreme Court *in Muchena* v *The Police Service Commission & Anor* SC 65-25 found that, in answering whether the application was for review or *declaratur* the *court a quo* correctly set out the law on the factors to be considered in determining whether an application is for review or a *declaratur*. The court held that:

> "……It remarked at p 3 of the judgment that:
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> "A review is concerned with the regularity and validity of the proceedings. (*Liberty Life Association of Africa v Kachelhoffer* 2001 (3) SA 1094). The decision-making process is what a review looks at (*Krumm v The Master* 1989 (3) SA 944). In *Samaya v Commissioner General of Police & 2 Ors* HH272-21 MANZUNZU J had this to say:
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> 'The cardinal principle in deciding whether an application is for a declaratory order or review is not so much of the relief sought but rather the grounds upon which the application is based. In *Geddes Ltd v Taonezvi* 2002(1) ZLR 479(S) Malaba JA said: 'In deciding whether an application is for a declaration or review, a court has to look at the grounds of the application and the evidence produced in support of them. The fact that an application seeks a declaratory relief is not in itself proof that application is not for review.'"

(26) Further in *Zvomatsayi & Ors* v *Chitekwe NO & Anor* 2019(3) ZLR 990 (H) the court held that:

> "A review is not concerned with the merits of the decision but whether it was arrived at in an acceptable fashion. The focus is on the process, and on the way in which the decision-maker came to the challenged decision. Instead of asking whether the decision was right or wrong, a court on review concerns itself with the procedural irregularities. A *declaratur* and review cover different jurisprudential terrains. The two cannot be deployed interchangeably. It is one or the other, but never both. A declaratory order should not be used to get around the requirements for review proceedings."

(27 The court in *Constable Sibanda K 067776T* v *The Trial Officer & Ors* HB 128/18, effectively distinguished an application for a declaratu*r* and an application for a review. The court stated that:

> "In my view, the issue is not whether or not there exists two or more causes of action. It is whether or not from its contents and relief sought, the current application is essentially one for review and not a *declaratur*. In *Masuku vs Delta Beverages* 2012 (2) ZLR 112 (H) it was held that;
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> "The determining factor in the position of an application for review is the irregularity of the procedure adopted by a tribunal, board or presiding quasi-judicial board. An application for review is validated or authenticated not by its mere title, but by the facts, which should be a complaint regarding the irregular procedure adopted by the authoritative body whose determination has prejudiced applicant."

(28) The distinction between an application for a declaration order and an application for review can easily be found in the remarks by ADAM J in *Marasha v Old Mutual Life Assurance Co*. 2000 (2) ZLR 197 (H) at 198 where the learned judge said;

> "It is clear from the papers filed before me by the applicant that essentially, he sought review of proceedings well out of time without first making an application for condonation and establishing that he was entitled to bring an application out of time. What is significant is not heading the proceedings "court application for Declaration" but the draft order which asks the decision to be set aside and his salary to be paid. This clearly is not a declaratory order."

(29) Herbstein and Van Winsen: Civil Practice of the Superior Court of South Africa, 4th Edition at p 93 wrote:-

> "The reason for bringing proceedings under review or appeal is usually the same, to have the judgment set aside. Where the reason of wanting that is that the court came to a wrong conclusion on the facts of the law. The appropriate procedure is by way of appeal where; however, the real grievance is against the method of the trial, it is proper to bring the case on review. The first distinction depends therefore on whether it is the result only or rather the method of trial, which is to be attacked. Naturally, the method of trial will be attacked on review only when the result of the trial is regarded as unsatisfactory as well. The giving of a judgment not justified by the evidence would be a matter of appeal and not review upon this test. The essential question in review proceedings is not the correctness of the decision under review but its validity"

ANALYSIS

(30) It has already been established that a party can either seek a *declaratur* or review, one cannot institute proceedings for both at the same time. From the above cited authorities, a review is based on the regularity and validity of the proceedings, the process in which the decision maker concluded. While a *declaratur* asks the court to define the existing legal position or rights between the parties without providing consequential relief. The applicant

asks for an order for the discharge granted against him in 2017 to be declared void and of no effect. The applicant also wants to be reinstated into the Police Service without loss of salary and benefits. This is clearly not a declaratory order. The preliminary point raised by the 1st respondent that the relief sought is incompetent in that it is a review disguised as a *declaratur*.

The preliminary point has merit and the matter must therefore be struck off the roll.

DISPOSITION

1. The preliminary point raised by the first respondent has merit.
2. The applicant has brought an application for review disguised as an application for a *declaratur*.
3. The matter is struck off the roll with costs.

MANZUNZU J…….

Nyawo Ruzive Attorneys, applicant's legal practitioners.
Civil Division of the Attorney General, respondent's legal practitioners.